

Yatendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 July 2021 · Writ-C No. 16762 of 2021 · Writ-C No. 16762 of 2021 · **Writ disposed; bill-correction objection remitted under clause 6.5(b)(ii) on deposit of Rs 1,00,000; coercive recovery stayed six weeks.**

HEADNOTE

A prayer for correction of an electricity bill is referable to clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, and is not decided in writ. The petition was disposed of directing that if the petitioner complies with clause 6.5(b)(ii) within one month and deposits Rs 1,00,000 with the licensee, the authority shall pass orders on the correction prayer within two weeks; coercive measures stayed for six weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Yatendra Singh challenged a notice dated 23 October 2020 issued by the distribution licensee demanding electricity dues of Rs 5,22,409. He disputed the correctness of the demand, claimed to have deposited Rs 13,380 towards dues in July 2020, and relied on an objection dated 6 March 2021 seeking quashing of the notice and correction of the bill. The writ was filed against the State of Uttar Pradesh and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-remittal

HOLDING

A prayer for correction of an electricity bill is referable to clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. On the petitioner complying with clause 6.5(b)(ii) within one month and depositing Rs 1,00,000 with the licensee, that authority is to pass appropriate orders on the correction prayer within two weeks. Coercive recovery is stayed for six weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

bill-correction-clause-6.5 The correction prayer was treated as a clause 6.5 billing complaint and sent to the licensee to pass orders after 6.5(b)(ii) compliance and a Rs 1,00,000 deposit. ¶ 1

clause-6.5-alternate-remedy-to-writ The Court did not examine the Rs 5,22,409 demand on merits and disposed of the writ by remitting the objection to the statutory 6.5 process. ¶ 1

6.5-pending-complaint-writ-remitted An already-filed 6 March 2021 objection seeking bill correction was left to be decided under clause 6.5 after the directed deposit, with a short stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS 5,22,409 DEMAND AND THE PRAYER TO QUASH THE 23.10.2020 NOTICE

The Court did not decide the bill on merits; only the correction prayer was remitted under clause 6.5. ¶ 1